

CU-25-00058 **Sanchez, Fernando vs. FCA US, LLC. et al.**

The hearings on the Motions to Compel and Judgment on the Pleadings as well as the Case Management Conference are continued to November 3, 2026 at 10:30 a.m. to allow for Judge Breen to conclude the hearings on the motions.

CU-25-00150 **Hayes, Rico Richard Jr. vs. Demanty, Craig Michael et al**

The Court signed the stipulation to continue the Case Management Conference. The Court has also reviewed the declaration submitted in response to the Order to Show Cause. The OSC is dismissed and the hearing is vacated. No appearances are necessary on September 17, 2026.

CU-25-00186 **Hazleton, Laurel vs. Sierra Golf Operations LLC**

Defendant's Motion to Compel Arbitration and Stay Proceedings is GRANTED.

A written agreement to submit a controversy to arbitration is valid and enforceable, absent a reason under state law, such as unconscionability save upon such grounds that would render any contract revocable. (Code Civ. Proc., § 1281; *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114; *Sandoval-Ryan v. Oleander Holdings LLC* (2020) 58 Cal.App.5th 217, 222.) "The party seeking to compel arbitration bears the burden of proving the existence of an arbitration agreement." (*Aanderud v. Superior Court* (2017) 13 Cal.App.5th 880, 890.) "(T)he party opposing arbitration bears the burden of proving by a preponderance of the evidence any defense, such as unconscionability. (Citations.)" (*Peng v. First Republic Bank* (2013) 219 Cal.App.4th 1462, 1468.) The party opposing arbitration must establish both procedural and substantive unconscionability. (*Armendariz*, 24 Cal.4th at 114.) The two factors are judged on a sliding scale; "the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable and vice versa." (*Ibid.*) "The ultimate issue in every case is whether the terms of the contract are sufficiently unfair, in view of all relevant circumstances, that a court should withhold enforcement." (*Sanchez v. Valencia Holding Co. LLC* (2015) 61 Cal.4th 899, 912.)